

**CHAPTER lxii.**

An Act for conferring further capital and other powers on the Dover Gas Company. [15th August 1919.] A.D. 1919.

WHEREAS the Dover Gas Company (in this Act called "the Company") were re-incorporated by the Dover Gas Works Act 1860 and were (amongst other things) authorised to manufacture and supply gas to the places and within the limits in the said Act described:

And whereas further powers were conferred upon the Company by the Dover Gas (Amendment) Act 1864 the Dover Gas Order 1885 and the Dover Gas Act 1901:

And whereas the authorised share capital of the Company consists of one hundred and eighty thousand pounds of which the sum of one hundred thousand pounds has been issued and fully paid up and there has been received in premiums the sum of thirty thousand nine hundred and eighty-three pounds fifteen shillings and eightpence and there remains to be issued the sum of forty-nine thousand and sixteen pounds four shillings and fourpence:

And whereas the Company have been authorised to borrow the sum of fifty-two thousand eight hundred and thirty-three pounds six shillings and eightpence and they have by borrowing on mortgage and by the creation and issue of debenture stock raised and now owe the sum of twenty-five thousand one hundred and twenty-four pounds and there remains to be borrowed the sum of twenty-eight thousand and nine pounds six shillings and eightpence:

And whereas the Company have paid all interest due on the debenture stock created and issued by them as aforesaid:

A.D. 1919.

And whereas it is essential that the Company be authorised to raise further capital immediately for the general purposes of the undertaking:

And whereas by reason of the financial position which has been caused by the present war the Company are unable to raise money by the issue of ordinary or preference capital (if at all) otherwise than on very disadvantageous terms and it is expedient that the present powers of the Company with reference to borrowing or raising money on mortgage or by the creation and issue of debenture stock should be amended and that the further powers in this Act contained should be conferred upon the Company:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Dover Gas Act 1919 and the Dover Gas Acts and Order 1860 to 1885 and the Dover Gas Act 1901 and this Act may be cited together and are in this Act referred to as the Dover Gas Acts 1860 to 1919.

Incorporation of Acts.

2. The following parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The borrowing of money by the Company on mortgage or bond except sections 38 and 40;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested.

And Part III. of the Companies Clauses Act 1863 (as amended by subsequent Acts) relating to debenture stock except sections 22 32 and 34.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and

expressions to which meanings are assigned by the Acts partially incorporated herewith have the same respective meanings
And—

A.D. 1919.

The expression "the Company" means the Dover Gas Company ;

The expression "the directors" means the directors of the Company ;

The expression "the undertaking" means the undertaking of the Company :

The expression "limits of supply" means the limits within which the Company are authorised to supply gas ;

The expression "calorific power" means the total heat value expressed in British thermal units ;

The expression "British thermal units" means British thermal units gross per cubic foot of gas ;

The expressions "the Act of 1860" "the Act of 1864" "the Order of 1885" and "the Act of 1901" mean respectively the Dover Gas Works Act 1860 the Dover Gas (Amendment) Act 1864 the Dover Gas Order 1885 and the Dover Gas Act 1901.

4.—(1) Notwithstanding anything contained in any Act the directors may without any further or other authority than is given by this section and at such times and on such terms and conditions as they may think fit raise for the purposes of this Act and for the general purposes of the undertaking either at their option by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or partly by either of such means such sum or sums of money as with the aggregate amount of money raised at the date of the passing of this Act by the creation and issue of debenture stock and by borrowing on mortgage under the provisions of the Acts of 1860 1864 and 1901 will make up the sum of fifty-nine thousand eight hundred and twenty-four pounds.

Power to borrow.

(2) The interest of all debenture stock and all mortgages created and issued or granted under the powers of this Act and of all debenture stock and mortgages issued or granted under the Acts of 1860 1864 and 1901 shall rank *pari passu* in all respects and shall have priority over all principal moneys secured by such mortgages.

A.D. 1919.

(3) The powers of borrowing on mortgage or creating or issuing debenture stock conferred upon the Company by the Acts of 1860 1864 and 1901 so far as the same shall not have been exercised at the date of the passing of this Act are hereby repealed.

Issue of
redeemable
preference
stock or
debenture
stock.

5.—(1) The Company may create and issue any preference stock or debenture stock authorised to be created and issued under the powers of the Act of 1860 the Act of 1864 and the Act of 1901 as amended by this Act so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(a) Call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and

(b) Redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue new stock (either redeemable or irredeemable) or re-issue stock originally created and issued under this section Provided that the creation and re-issue for the purpose of any particular class of stock does not make the total nominal amount of such stock exceed the amount of that class of stock which the Company are for the time being authorised to create.

(3) Save as hereinafter provided the Company shall not redeem out of revenue any debenture stock or preference stock created under this section but the Company may if they think fit at any time during a period of ten years from the passing of this Act so redeem to a total amount not exceeding six thousand pounds any such stock created and issued for the purpose of defraying abnormal reparation expenditure due to circumstances arising out of the present war and such redemption may be effected either by way of the payment off of annual instalments of the said sum or by way of a sinking fund calculated to pay off the same at the expiration of the period aforesaid.

6. After the passing of this Act the ordinary meetings of the proprietors of the Company shall be held annually instead of half-yearly and shall in every year be held in the month of February or March and at such place as the directors may from time to time determine.

A.D. 1919.

Annual
ordinary
meetings.

7. The directors of the Company may in any year declare and pay an interim half-yearly dividend out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the amount of the authorised rate of dividend upon any shares or stock of the Company.

Interim
dividend.

8. The provisions of section 12 (Profits of the Company limited) of the Act of 1901 in so far as they limit the rate of dividend on the preference capital of the Company are hereby repealed and any preference capital which may be hereafter created under the powers of the said Act or of this Act as redeemable preference stock may be capital with a dividend at such rate as the directors may determine at the time or times of the creation thereof but on any preference stock hereafter created which is not redeemable the dividend shall not exceed seven per cent.

Removal of
limit on
dividend on
preference
capital.

9. Section 14 (Appointment of a receiver) of the Act of 1901 is hereby repealed as from the passing of this Act but without prejudice to any appointment heretofore made or to the continuance of any proceedings then pending.

Appoint-
ment of
receiver.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

10. If any money is payable to a mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of
persons not
sui juris.

11. All money to be raised by the Company on mortgage or by the creation and issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims

Priority of
money
raised on
mortgage or
debenture
stock.

A.D. 1919. on account of any debts incurred or engagements entered into by them after the passing of this Act:

Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Repeal of
sections 15
16 17 18 and
19 of Act of
1901 and
other pro-
visions in
lieu thereof.

12. Sections 15 16 17 18 and 19 of the Act of 1901 are hereby repealed and in lieu thereof the following provisions shall apply and have effect:—

(1) All ordinary stock hereafter created under the powers of the Act of 1901 relating to the Company shall be issued in accordance with the provisions of this section:

(2) All such stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the town clerk of the borough of Dover and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said borough In the case of an intended sale by auction notice of such intended sale shall be given in writing to the holders of stock and shares of the Company at the same time as the notices hereinbefore referred to are given;

A.D. 1919.

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;

(c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds;

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be:

(3) Any stock which has been offered for sale in accordance with subsection (2) of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable:

(4) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

13.—(1) Within six months from the passing of this Act the Company shall provide and maintain at their works apparatus for testing the calorific power of the gas supplied by them at such testing-place similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas.

Testing for
calorific
power.

(2) The gas supplied by the Company shall be tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees and shall be of a calorific

A.D. 1919. — power of five hundred British thermal units and that power is in this Act referred to as “the standard calorific power.”

(3) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for illuminating power shall cease to apply to the Company and sections 28 to 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

Provisions
as to testing
for calorific
power.

14.—(1) Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

(2) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

Penalties for
deficient
calorific
power.

15. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):—

If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds:

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

Pressure.

16.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than fifteen-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

17. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

A.D. 1919.
Saving as to
penalties.

18. Section 44 (Quality of gas) of the Dovor Gas Works Act 1860 and sections 7 to 10 inclusive of the Dovor Gas Order 1885 are hereby repealed.

Repeal of
certain sec-
tions of Act of
1860 and Order
of 1885.

19. The Company may enter into and carry into effect agreements with any company body or person for the purchase of gas in bulk by the Company for such price and on such terms and conditions and for such period as may be agreed upon and any gas so purchased may be used by the Company for distribution within the limits of supply and otherwise for the purposes of the undertaking.

Purchase of
gas in bulk.

20. Except as by this Act provided the Company may from time to time apply for or towards all or any of the purposes of this Act and for or towards the general purposes of the undertaking to which capital is properly applicable any sums of money which they have already raised or are authorised to raise or which may be in their possession or under their control and which are not required for the purposes to which they are made specially applicable.

Power to
apply funds.

21. Nothing in this Act shall exempt the Company or the undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as
to general
Acts.

22. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of
Act.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.B.E., M.V.O., the King's Printer of Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C. 2 and 28, ABINGDON STREET, LONDON, S.W. 1;
37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
23, FORTH STREET, EDINBURGH;
or from E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

